

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – BODILY INJURY TO EMPLOYEES – ABSOLUTE

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

Exclusion e. Employer's Liability of item 2. Exclusions, **COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY, SECTION I - COVERAGES** is replaced by the following:

e. Employer's Liability

"Bodily injury" to:

- (1) An "employee" of the insured arising out of and in the course of:
 - (a) Employment by the insured; or
 - (b) Performing duties related to the conduct of the insured's business
- (2) An "employee" of any "contractor" or "subcontractor" performing work or operations directly or indirectly on behalf of an insured.
- (3) A "contractor" or "subcontractor" on any site where an insured is performing work, conducting business, performing operations, services and/or duties related to the conduct of the insured's business.
- (4) A "business invitee" who is or was present on any site where an insured is performing work, conducting business, performing operations, services and/or duties related to the conduct of the insured's business, where the "business invitee" is, or is alleged to have been, injured due to the work, operations, business, services, duties being performed by, on behalf of or in conjunction with the insured or by any work, operations, business, services or duties performed related to the conduct of the insured's business by any person or entity.

For the purposes of this exclusion the following definitions apply:

1. "Business invitee" means any entity or person, or employee or agent of any entity or person that is present on any site where any insured is conducting business, performing operations, services and/or duties related to the conduct of the insured's business in order to provide related services, operations and/or business for work, business, services or operations of the insured at the site and shall include, but not be limited to, governmental inspectors, employees of any utility and/or any tradesmen.
2. "Contractor" means any entity or person that is contracted, whether in writing or orally, to perform work on any site where any insured is performing work, conducting business and/or performing operations and/or services.
3. "Employee" means any person employed in any capacity to work on any site where any insured is conducting business, performing operations, services and/or duties related to the conduct of the insured's business and includes, but is not limited to, leased workers, volunteer workers, temporary workers, agents and/or any person on the worksite with the permission of any insured, "landowner," "contractor," "subcontractor," or "business invitee" to perform work, conduct business and/or perform operations and/or services.

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4. "Landowner" means any entity or person that owns, or has an ownership interest in, any real property upon which the insured is conducting business, performing operations, services and/or duties related to the conduct of the insured's business.
5. "Subcontractor" means any entity or person that is contracted, whether in writing or orally, by any "contractor" to perform work on any site where any insured is conducting business, performing operations, services and/or duties related to the conduct of the insured's business.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED